

COMMITTEE ON TRANSPORTATION & INFRASTRUCTURE
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2127
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-2351, Arizona Revised Statutes, is amended to
3 read:

4 28-2351. License plate provided; design

5 A. Notwithstanding any other law, the department shall provide to
6 every owner one license plate for each vehicle registered. At the request
7 of the owner and on payment of a fee in an amount prescribed by the
8 director by rule, the department shall provide one additional license
9 plate for a vehicle for which a special plate is requested pursuant to
10 this chapter.

11 B. The license plate shall display the number assigned to the
12 vehicle and to the owner of the vehicle and the name of this state, which
13 may be abbreviated. The director shall coat the license plate with a
14 reflective material that is consistent with the determination of the
15 department regarding the color and design of license plates and special
16 plates. The director shall design the license plate and the letters and
17 numerals on the license plate to be of sufficient size to be plainly
18 readable during daylight from a distance of one hundred feet. In addition
19 to the standard license plate issued for a trailer before August 12, 2005,
20 the director shall issue a license plate for trailers that has a design
21 that is similar to the standard size license plate for trailers but that
22 is the same size as the license plate for motorcycles. The trailer owner
23 shall notify the department which size license plate the owner wants for
24 the trailer.

25 C. In addition to the requirements prescribed in subsection B of
26 this section, for all license plates, including all special plates, that
27 are designed or redesigned on or after September 24, 2022:

1 1. The background color of the license plate shall contrast
2 significantly with the color of the letters and numerals on the license
3 plate and with the name of this state on the license plate.

4 2. The name of this state shall appear on the license plate in
5 capital letters in sans serif font and be three-fourths of an inch in
6 height.

7 D. Notwithstanding any other law, the department shall not contract
8 with a nongovernmental entity to purchase or secure reflective material
9 for the plates issued by the department unless the department has made a
10 reasonable effort to secure qualified bids or proposals from as many
11 individual responsible respondents as possible.

12 E. The department shall determine the color and design of the
13 license plate subject to the requirements prescribed by subsections B and
14 C of this section. All plates issued by the department, except the plates
15 that are issued pursuant to sections 28-2404, 28-2412, 28-2413, 28-2414,
16 28-2416, 28-2416.01, 28-2417 through 28-2470.39, 28-2472, 28-2473,
17 28-2474, 28-2475, 28-2476, 28-2477, 28-2478 and 28-4533 and article 14
18 of this chapter, shall be the same color as and similar in design to the
19 license plate as determined by the department.

20 F. A passenger motor vehicle that is rented without a driver shall
21 receive the same type of license plate as is issued for a private
22 passenger motor vehicle.

23 Sec. 2. Section 28-2403, Arizona Revised Statutes, is amended to
24 read:

25 28-2403. Special plates; transfers; violation; classification

26 A. Except as otherwise provided in this article, the department
27 shall issue or renew special plates in lieu of the regular license plates
28 pursuant to the following conditions and procedures and only if the
29 requirements prescribed by this article for the requested special plates
30 are met:

31 1. Except as provided in sections 28-2416 and 28-2416.01, a person
32 who is the registered owner of a vehicle registered with the department or
33 who applies for an original or renewal registration of a vehicle may
34 submit to the department a completed application form as prescribed by the
35 department with the fee prescribed by section 28-2402 for special plates
36 in addition to the registration fee prescribed by section 28-2003.

37 2. Except for plates issued pursuant to sections 28-2404, 28-2412,
38 28-2413, 28-2414, 28-2416, 28-2416.01, 28-2417 through 28-2470.39,
39 28-2472, 28-2473, 28-2474, 28-2475, ~~and~~ 28-2476~~[.]~~ ~~[AND]~~ 28-2477 ~~[AND]~~
40 28-2478 and article 14 of this chapter, the special plates shall be the
41 same color as and similar to the design of the regular license plates that
42 is determined by the department.

43 3. Except as provided in section 28-2416, the department shall
44 issue special plates only to the owner or lessee of a vehicle that is
45 currently registered, including any vehicle that has a declared gross
46 weight, as defined in section 28-5431, of twenty-six thousand pounds or
47 less.

1 4. Except as provided in sections 28-2416 and 28-2416.01, the
2 department shall charge the fee prescribed by section 28-2402 for each
3 annual renewal of special plates in addition to the registration fee
4 prescribed by section 28-2003.

5 B. Except as provided in sections 28-2416 and 28-2416.01, on
6 notification to the department and on payment of the transfer fee
7 prescribed by section 28-2402, a person who is issued special plates may
8 transfer the special plates to another vehicle the person owns or leases.
9 Persons who are issued special plates for hearing impaired persons
10 pursuant to section 28-2408 and international symbol of access special
11 plates pursuant to section 28-2409 are exempt from the transfer fee. If a
12 person who is issued special plates sells, trades or otherwise releases
13 ownership of the vehicle on which the plates have been displayed, the
14 person shall immediately report the transfer of the plates to the
15 department or the person shall surrender the plates to the department as
16 prescribed by the director. It is unlawful for a person to whom the
17 plates have been issued to knowingly allow them to be displayed on a
18 vehicle except the vehicle authorized by the department.

19 C. The special plates shall be affixed to the vehicle for which
20 registration is sought in lieu of the regular license plates.

21 D. A person is guilty of a class 3 misdemeanor who:

22 1. Violates subsection B of this section.

23 2. Fraudulently gives false or fictitious information in the
24 application for or renewal of special plates or placards issued pursuant
25 to this article.

26 3. Conceals a material fact or otherwise commits fraud in the
27 application for or renewal of special plates or placards issued pursuant
28 to this article.

29 Sec. 3. Title 28, chapter 7, article 13, Arizona Revised Statutes,
30 is amended by adding [section] [sections] 28-2477 [and 28-2478], to read:

31 28-2477. Bronze star medal license plates; fees

32 A. THE DEPARTMENT SHALL ISSUE DISTINCTIVE LICENSE PLATES TO:

33 1. A PERSON WHO SUBMITS SATISFACTORY PROOF TO THE DEPARTMENT THAT
34 THE PERSON IS A VETERAN AND A BONA FIDE BRONZE STAR MEDAL RECIPIENT.

35 2. AN IMMEDIATE FAMILY MEMBER OF A PERSON WHO HAS BEEN ISSUED A
36 LICENSE PLATE PURSUANT TO THIS SECTION.

37 B. FOR EACH ORIGINAL LICENSE PLATE ISSUED PURSUANT TO THIS SECTION,
38 THE DEPARTMENT SHALL COLLECT A FEE OF \$25 IN ADDITION TO THE REGISTRATION
39 FEE REQUIRED BY SECTION 28-2003. FOR EACH ANNUAL RENEWAL OF LICENSE
40 PLATES ISSUED PURSUANT TO THIS SECTION, THE DEPARTMENT SHALL CHARGE A FEE
41 OF \$5 IN ADDITION TO THE REGISTRATION FEE REQUIRED BY SECTION
42 28-2003. THE DEPARTMENT SHALL DEPOSIT, PURSUANT TO SECTIONS 35-146 AND
43 35-147, THE \$25 FEE AS A DONATION IN THE VETERANS' DONATIONS FUND
44 ESTABLISHED BY SECTION 41-608.

45 28-2478. Silver star medal license plates; fees

46 [A. THE DEPARTMENT SHALL ISSUE DISTINCTIVE LICENSE PLATES TO:

1 1. A PERSON WHO SUBMITS SATISFACTORY PROOF TO THE DEPARTMENT THAT
2 THE PERSON IS A VETERAN AND A BONA FIDE SILVER STAR MEDAL RECIPIENT.

3 2. AN IMMEDIATE FAMILY MEMBER OF A PERSON WHO HAS BEEN ISSUED A
4 LICENSE PLATE PURSUANT TO THIS SECTION.

5 B. FOR EACH ORIGINAL LICENSE PLATE ISSUED PURSUANT TO THIS SECTION,
6 THE DEPARTMENT SHALL COLLECT A FEE OF \$25 IN ADDITION TO THE REGISTRATION
7 FEE REQUIRED BY SECTION 28-2003. FOR EACH ANNUAL RENEWAL OF LICENSE
8 PLATES ISSUED PURSUANT TO THIS SECTION, THE DEPARTMENT SHALL CHARGE A FEE
9 OF \$5 IN ADDITION TO THE REGISTRATION FEE REQUIRED BY SECTION
10 28-2003. THE DEPARTMENT SHALL DEPOSIT, PURSUANT TO SECTIONS 35-146 AND
11 35-147, THE \$25 FEE AS A DONATION IN THE VETERANS' DONATIONS FUND
12 ESTABLISHED BY SECTION 41-608.]

13 Sec. 4. Section 28-6501, Arizona Revised Statutes, is amended to
14 read:

15 28-6501. Definition of highway user revenues

16 In this article, unless the context otherwise requires or except as
17 otherwise provided by statute, "highway user revenues" means all monies
18 received in this state from licenses, taxes, penalties, interest and fees
19 authorized by the following:

20 1. Chapters 2, 7, 8 and 15 of this title, except for:

21 (a) The special plate administration fees prescribed in sections
22 28-2404, 28-2407, 28-2412 through 28-2470.39 and 28-2514.

23 (b) The donations prescribed in sections 28-2404, 28-2407, 28-2412
24 through 28-2415, 28-2417 through 28-2470.39, 28-2473, 28-2474, 28-2475,
25 ~~and~~ 28-2476[.] ~~[AND]~~ 28-2477 ~~[AND 28-2478]~~.

26 2. Section 28-1177.

27 3. Chapters 10 and 11 of this title.

28 4. Chapter 16, articles 1, 2 and 4 of this title, except as
29 provided in sections 28-5926 and 28-5927.

30 Sec. 5. Section 41-608, Arizona Revised Statutes, is amended to
31 read:

32 41-608. Veterans' donations fund; transfer; grants

33 A. The veterans' donations fund is established consisting of
34 monies, gifts and contributions donated to the department and monies
35 deposited pursuant to sections 28-2414, 28-2428, 28-2431, 28-2447,
36 28-2454, 28-2470.10, 28-2473, 28-2474, 28-2475, 28-2476,
37 28-2477[., 28-2478] and 43-620. The department shall administer the
38 fund. Monies in the fund are continuously appropriated. The monies in
39 the fund are exempt from the provisions of section 35-190 relating to
40 lapsing of appropriations. The department shall annually transfer fifteen
41 percent of all revenues received by the department that are deposited in
42 the veterans' donations fund pursuant to this section to the subaccount
43 established pursuant to section 41-608.01 in the state homes for veterans
44 trust fund. The department shall adopt rules or policies for grants of
45 less than \$5,000 that encourage as much competition as practicable.

46 B. The director or the director's designee may solicit and receive
47 donations, including in-kind donations, from the public for veterans. The

1 director shall deposit, pursuant to sections 35-146 and 35-147, the
2 monetary donations in the veterans' donations fund. Monies in the fund
3 are subject to state auditing procedures. Except for monies deposited
4 pursuant to sections 28-2431 and 28-2447, the donations may be used for
5 the benefit of the veterans within this state as grants, subject to
6 chapter 24 of this title, if applicable.

7 C. The director shall establish a separate subaccount in the
8 veterans' donations fund for the deposit of monies received pursuant to
9 section 28-2431, subsection C. The monies in the subaccount shall be used
10 for the construction and maintenance of the enduring freedom memorial
11 authorized pursuant to section 41-1363 for placement in Wesley Bolin
12 Plaza.

13 D. The director shall establish a separate subaccount in the
14 veterans' donations fund for the deposit of monies received pursuant to
15 section 28-2447, subsection F. The monies in the subaccount shall be used
16 for the benefit of women veterans in this state, including providing
17 shelter to homeless women veterans as grants, subject to chapter 24 of
18 this title, if applicable.

19 E. The director shall establish a separate subaccount in the
20 veterans' donations fund for the deposit of monies received pursuant to
21 section 28-2454, subsection C. The first \$32,000 in the subaccount shall
22 be reimbursed to the person that provides the \$32,000 pursuant to section
23 28-2454, subsection A. The director shall annually allocate monies from
24 the subaccount to a foundation that is qualified under section 501(c)(3)
25 of the United States internal revenue code for federal income tax purposes
26 and that is the nation's oldest and largest provider of need-based
27 scholarships to children of United States military members. The
28 foundation must:

- 29 1. Have been in existence for at least fifty-two years.
- 30 2. Have provided more than thirty-three thousand scholarships that
31 are valued at almost \$90,000,000.
- 32 3. Have a mission that includes honoring marines and educating
33 their children.
- 34 4. Award scholarship monies to children of marines and navy
35 corpsmen who were killed or wounded in combat or who have demonstrated
36 financial need.

37 F. The director shall establish a separate subaccount in the
38 veterans' donations fund for the deposit of monies received pursuant to
39 section 28-2470.10, subsection C. The first \$32,000 in the subaccount
40 shall be reimbursed to the person that provides the \$32,000 pursuant to
41 section 28-2470.10, subsection A. The director shall annually allocate
42 monies from the subaccount to a foundation that is qualified under section
43 501(c)(3) of the United States internal revenue code for federal income
44 tax purposes. The foundation must:

- 45 1. Have been in existence for at least twenty years.
- 46 2. Have a mission that includes providing college scholarships to:

1 (a) The sons and daughters of those who have served the United
2 States honorably as soldiers in the United States army.

3 (b) The spouses of enlisted soldiers on active duty in the United
4 States army.

5 3. Envision increasing its fundraising and visibility to encourage
6 more applicants to apply for scholarships and to provide larger
7 scholarships to an increasing number of deserving applicants to both:

8 (a) Reward army families for the sacrifices that army soldiers make
9 every day to serve their nation.

10 (b) Help the spouses and children of army soldiers become leaders
11 in society.

12 4. Award scholarship monies to:

13 (a) Children of former United States army members who were killed
14 while serving in the United States army or who received an honorable
15 discharge or medical discharge.

16 (b) Children of United States army members in good standing serving
17 in regular active duty, active duty reserve or active duty national guard.

18 (c) Spouses of United States army members in good standing serving
19 in regular active duty, active duty reserve or active duty national guard.

20 G. The director shall inventory and account for the use of any
21 tangible personal property donated to the fund.

22 H. The department may use up to \$150,000 from the veterans'
23 donations fund each fiscal year to administer this section. In addition
24 to any other full-time equivalent positions authorized by law, the
25 department is authorized two full-time equivalent positions to administer
26 this section.

27 I. On notice from the director, the state treasurer shall invest
28 and divest monies in the fund as provided by section 35-313, and monies
29 earned from investment shall be credited to the fund.

30 Enroll and engross to conform

31 Amend title to conform

And, as so amended, it do pass

LEO BIASIUCCI
CHAIRMAN

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